

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
REGINALD JAMES AND MALCOLM ARRINGTON,
Plaintiffs,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

INDEX NO.

THE CITY OF NEW YORK, P.O. DAVID MALDONALDO
SHIELD # 806, INDIVIDUALLY AND AS A POLICE
OFFICER, LT. PAUL ZAPATA, 32ND PCT,
INDIVIDUALLY AND AS A POLICE OFFICER,
AND P.O. JOHN DOE 1-5, INDIVIDUALLY
AND AS A POLICE
OFFICERS, 32ND PCT

Plaintiffs designate New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose.

Defendants.

-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 24, 2014



EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for the Plaintiffs
499 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer David Maldonado, 32nd pct
Lt Paul Zapata, 32nd pct.

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COUNTY OF NEW YORK

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DOE 1-5, INDIVIDUALLY AND AS A POLICE
OFFICERS, 32ND PCT

Defendants.

-----X

The plaintiffs Malcolm Arrington and Reginald James, as and for a Verified Complaint filed by their attorneys, Emdin & Russell, LLP complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 27th day of April, 2013, Police Officer David Maldonaldo, hereinafter referred to as "Maldonaldo", was employed as a Police Officer by the "City" and/or "NYPD", assigned shield number 806, and, and at all relevant times set forth below acted in the capacity of a police officer and employee of the City of New York.

4. Upon information and belief, at all times hereinafter mentioned, and on the 27th day of April, 2013, Lt Paul Zapata, hereinafter referred to as "Zapata" was employed as a Lt/

Police Officer by the “City” and/or “NYPD” assigned to the 32nd pct, and at all relevant times set forth below acted in the capacity of a police officer and employee of the City of New York.

5. Upon information and belief, at all times hereinafter mentioned, and on the 27th day of April, 2013, at approximately 7:00 p.m. Maldonado, Zapata and P.O. John Doe #1, were on duty as police officers and in police vehicle.

6. Upon information and belief Zapata at all times hereinafter mentioned was the supervisor of Maldonado.

7. Upon information and belief John Does #1-5, identities presently unknown, on the 27th day of April, 2013, were employed by the City of New York as New York City Police Officers and at all relevant times hereinafter mentioned acted in that capacity.

8. Upon information and belief Zapata, at all times hereinafter mentioned was the supervisor of John Does #1-5.

9. Upon information and belief, at all times hereinafter mentioned, and on the 27th day of April, 2013, at approximately 7:00 p.m. Maldonado, Zapata and John Doe #1 were present in the vicinity of 7th Avenue between 136th and 137th Street, New York, New York, hereinafter referred to as “location #1”.

10. Upon information and belief at all times hereinafter mentioned and on the 27th day of April, 2013 “Maldonado”, “Zapata”, and John Does #1-5, individually, and collectively referred to as “the officers”, were acting within the scope of their employment as police officers, and under the direction of the “City” as their agent, servant and/or employee.

11. On April 27, 2013 at approximately 7:00 p.m. the plaintiff, Arrington exited a deli located at “location #1”, and met up with Plaintiff James.

12. That on that date and time, and at “location #1”, a car containing, upon information and belief, Zapata, John Doe #1, and Maldonado, approached the plaintiffs and told them to “come here”.

13. The plaintiffs continued walking up 7th Avenue toward 137th Street.

14. When the officer called out to the plaintiffs again, James started to run up 137th Street towards 8th Avenue.

15. Upon information and belief Maldonado and John Doe #1 followed James. Upon information and belief Zapata followed in a car.

16. When James got to the vicinity of 137th Street and 8th Avenue, NY, NY,

hereinafter referred to as "location #2", there were numerous police vehicles and police officers present. James stopped running and fell to his knees and put his hands in the air.

17. An officer, (short, male white) ran up to James and struck him with a baton to the back of James' head, causing the plaintiff to fall to the ground

18. A second police officer handcuffed James.

19. Additional officers surrounded James and struck him with fist, feet and batons, while the plaintiff was on the ground in handcuffs.

20. Officers ignored James' pleas to stop hitting him.

21. A police officer sat on James' body.

22. Arrington attempted to record what the police were doing to James at location #2.

23. Zapata ordered Arrington to stop taping and get against the wall.

24. Zapata ordered a police officer to get Arrington's phone

25. The police officer struck Arrington's arm causing him to drop the phone.

26. Arrington was placed in handcuffs and arrested. The police took possession of the phone.

27. James was searched at the scene, i.e. location #2.

28. James requested medical attention at the scene as was told to "shut the fuck up".

29. Both Arrington and James were transported to the 32nd pct.

30. James and Arrington were was strip searched at the 32nd pct.

31. James did not receive any medical attention for over three hours despite his obvious need for medical attention.

32. Not one officer at location #2 interceded, mitigated or reported the excessive use of force.

33. Arrington and James were placed in a locked holding cell inside the 32nd pct.

34. Arrington and James were transported in handcuffs to Central Bookings.

35. Both plaintiffs were searched inside Central Booking and then placed in another locked holding cell.

36. James was arraigned on April 28, 2013 and charged with the crimes of criminal possession of marijuana in the fifth degree and resisting arrest.

37. The criminal court complaint, docket #2013NY033872, charging James with the aforementioned crimes was signed by Maldonado, and based in part on information provided by

Zapata.

38. James was released on his own recognizance at arraignment

39. Arrington was arraigned on April 28, 2013 and charged with the crime of obstructing governmental administration in the second degree.

40. The criminal court complaint, docket # 2013NY033865, charging Arrington with the aforementioned crimes was signed by Maldonado.

41. All criminal charges against James were dismissed.

42. Arrington was released on his own recognizance at arraignment.

43. All criminal charges against Arrington were dismissed on February 6, 2014.

44. As a result of the aforementioned police action James sustained physical and emotional injuries.

45. As a result of the aforementioned police action Arrington sustained physical and emotional injuries.

46. The police confiscated, destroyed and or tampered with evidence, i.e Arrington's cell phone in an attempt to cover-up their misconduct.

47. That notice of each of the plaintiffs claims and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City" and the Corporation Counsel of the City of New York.

48. That a 50(h) hearing of James was held on September 10, 2013..

49. That a 50(h) hearing of Arrington was held on April 23, 2014.

50. That more than 30 days have elapsed since the notices of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

51. That this action is commenced within one year and 90 days after the cause of action arose.

52. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF
ACTION FOR FALSE ARREST BY REGINAL JAMES
AGAINST ALL NAMED DEFENDANTS**

53. Plaintiff Reginald James repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "52" with the same force and effect as if more fully and at length set forth herein.

54. That the defendants, their agents, servants and/or employees intentionally and maliciously arrested, detained and imprisoned the plaintiff without any just cause or grounds therefore, and held him against his will under full force of arms until he was released from their custody.

55. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or without cause to believe that the plaintiff was guilty of such crimes.

56. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest entirely against his will.

57. That the defendants, their agents, servants and/or employees, as set forth above intended to arrest the plaintiff; the plaintiff was conscious of the arrest; he did not consent to the arrest; and the arrest was absent a lawful warrant or just cause.

58. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

59. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF
ACTION FOR FALSE IMPRISONMENT OF REGINALD JAMES
AGAINST ALL NAMED DEFENDANTS**

60. Plaintiff, Reginald James repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if more fully and at length set forth herein.

61. That the defendants, their agents, servants and/or employees intentionally and maliciously imprisoned the plaintiff without any just cause or grounds therefore, and held him against his will under full force of arms until he was released from their custody.

62. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or without cause to believe that the plaintiff was guilty of any crime or that they had just cause to hold and/or detain him.

63. That the defendants, their agents, servants and/or employees, as set forth above intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

64. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

65. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF REGINALD JAMES
FOR ASSAULT AND BATTERY AGAINST ALL NAMED DEFENDANTS**

66. The Plaintiff, Reginald James, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "65" with the same force and effect as if more fully and at length set forth herein.

67. That plaintiff as hereinbefore stated was, without provocation was struck with a

baton(s), beaten, kicked, handcuffed, abused, threatened, searched, and strip searched. Plaintiff was touched in an offensive manner by the defendants, while in the performance of their duties as police officers.

68. That all said contact was committed without plaintiff James' permission or consent.

69. That all said contact was unlawful and without privilege.

70. That all contact committed by defendants through their agents, servants, and/or employees, including the above named defendants, was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

71. That the above acts committed by the defendants constituted an assault and/or battery of James.

72. That by reason of the aforesaid, the plaintiff, James, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF REGINALD JAMES
FOR NEGLIGENCE, AGAINST THE CITY OF NEW YORK**

73. Plaintiff, Reginald James, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "72" with the same force and effect as if more fully and at length set forth herein.

74. That the defendant, "City" was careless and reckless in testing, analyzing, hiring, training, retaining, investigating, monitoring, supervising and promoting as and for its employees the defendant officers, in that the defendant officers lacked the temperament, experience, deportment and ability to be employed by City in the capacity they were serving under on April 27, 2013.

75. That the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices including but not limited to the named "officers"; in that the defendant "City" failed to investigate the above named employee's background in that the City failed to properly supervise and monitor said officers, and in that the defendants, their agents, servants

and employees, were otherwise careless, negligent and reckless in retaining, supervising, and/or promoting said officers in their employment

76. That the City and/or the police department were negligent in that they permitted or condoned the false arrests of the citizens of New York County including the plaintiffs, and in that they negligently permitted false documentation submitted by the officers; in that the City permitted and/or permits arrests absent probable cause or reasonable cause to believe a crime had been committed, and absent in that they tolerated the use of excessive force without meaningful investigation; in that they permitted officers to seize, destroy evidence of and intimidate witnesses to police misconduct; tolerated violations of police guidelines, and in that the City, their agents, servants and/or employees were otherwise careless, reckless and negligent.

77. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the City, by its agents, servants and/or employees including the above named defendant officers without any negligence on the part of the plaintiff contributing thereto.

78. That by reason of the aforesaid, the plaintiff James was injured in mind and body, suffered physical and mental pain, and he was thereby damaged

79. That by reason of the aforesaid James has been damaged in a sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS OF REGINALD JAMES UNDER
42 U.S.C. 1983 AGAINST MALDONALDO, ZAPATA, JOHN DOES #1-5 and THE CITY
OF NEW YORK**

80. That plaintiff Reginald James, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "79" with the same force and effect as if more fully and at length set forth herein.

81. That on or about the 27th day of April, 2013, at or about approximately 7:00 p.m. the defendant "officers" were present at location #1 and location #2 as part of their regular and official employment as police officers for the defendant, "City".

82. That as plaintiff James was lawfully and properly present thereat when he was chased, struck with a baton, handcuffed, and then continued to be struck with hands feet and instruments absent just cause, provocation or reason and unlawfully arrested and deprived of liberty by the defendant "officers" acting within the scope of their employment.

83. The officers seized and destroyed exculpatory evidence and intimidated and arrested witnesses to their misconduct.

84. The officers filed false charges and submitted false police reports to cover-up their misconduct, and/or to deny Plaintiff a fair trial

85. That all acts committed by "the officers", and other agents, servants, and/or employees of the defendant "City" were committed within the scope of their employment and under color of law.

86. That at all time, the defendant officers were acting pursuant to orders and directives from defendant, The City of New York.

87. That during all times hereinafter mentioned, the defendants acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that "the officers" were acting under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of plaintiff James, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

88. That the unlawful and illegal conduct of the defendant "officers" deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

c) the right to be free of cruel and inhuman punishment

- d) the right to freedom of movement
- e) the right to equal protection of the law
- f) the right to due process of the law
- g) the right to a fair trial

89. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of plaintiff's person, false arrest and false imprisonment, assault and battery, excessive use of force and threatening the plaintiff, and the failure of the Officers to intervene/intercede and prevent the aforementioned harm despite knowing of the existence of said violation(s) and having the ability to prevent or mitigate the harm, the defendant officers individually and collectively violated James' rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, The defendant officers violated 42 U.S.C. §1983.

90. That by reason of the aforesaid, the plaintiff was injured in mind and body, and he was damaged.

91. That by reason of the aforesaid, James has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory damages, punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTH CAUSE OF ACTION BY REGINALD JAMES
ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985 AND 1986 BY "MALDONALDO", "ZAPATA" AND
JOHN DOES #1-5 IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK**

92. That plaintiff Reginald James repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "91" with the same force and effect as if more fully and at length set forth herein.

93. That at all times hereinafter mentioned, the defendants Maldonaldo, Zapata and John Does #1-5, i.e. "the officers" were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of their official

capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

94. That on April 27, 2013 and thereafter, the defendant officers acted in a conspiracy to : cover-up their illegal stop and seizure of the plaintiff James, the use of excessive force against James; and the injuries to plaintiff James by filing false police report; filing false charges; swearing out false complaints; intimidating witnesses; arresting witnesses; seizing and suppressing evidence; denying prompt and necessary medical attention; and denying access to the courts by subverting evidence and due process of law.

95. That by reason of the aforesaid conspiracy to the use of force, use of arbitrary, and use of excessive force, seizure of plaintiff's person, false arrest and false imprisonment, assault and battery, excessive use of force and threatening the plaintiff, the defendant, the defendant "officers" violated James' rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, The defendant officers, and the City under the doctrine of respondent superior, violated 42 U.S.C. §1985 and 1986.

96. That by reason of the aforesaid, the plaintiff was injured in mind and body, and he was damaged.

97. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory damages, punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1985, 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTH CAUSE OF
ACTION FOR FALSE ARREST BY MALCOLM ARRINGTON
AGAINST ALL NAMED DEFENDANTS**

98. Plaintiff Malcolm Arrington repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "97" with the same force and effect as if more fully and at length set forth herein.

99. That the defendants, their agents, servants and/or employees intentionally and maliciously arrested, detained and imprisoned the plaintiff without any just cause or grounds

therefore, and held him against his will under full force of arms until he was released from their custody.

100. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or without cause to believe that the plaintiff was guilty of such crimes.

101. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest entirely against his will.

102. That the defendants, their agents, servants and/or employees, as set forth above intended to arrest the plaintiff, Arrington; the plaintiff was conscious of the arrest; he did not consent to the arrest; and the arrest was absent a lawful warrant or just cause.

103. That by reason of the aforesaid false arrest, plaintiff Arrington was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

104. That by reason of the aforesaid, the plaintiff, Arrington, has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR AN EIGHTH CAUSE OF
ACTION FOR FALSE IMPRISONMENT BY MALCOLM ARRINGTON
AGAINST ALL NAMED DEFENDANTS**

105. Plaintiff, Malcolm Arrington repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "104" with the same force and effect as if more fully and at length set forth herein.

106. That the defendants, their agents, servants and/or employees intentionally and maliciously imprisoned the plaintiff without any just cause or grounds therefore, and held him against his will under full force of arms until he was released from their custody.

107. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or without cause to believe that the plaintiff Arrington was

guilty of any crime or that they had just cause to hold and/or detain him.

108. That the defendants, their agents, servants and/or employees, as set forth above intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

109. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

110. That by reason of the aforesaid, the plaintiff, Arrington, has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A NINTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF MALCOLM ARRINGTON
FOR ASSAULT AND BATTERY AGAINST ALL NAMED DEFENDANTS**

111. The Plaintiff, Malcolm Arrington, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "110" with the same force and effect as if more fully and at length set forth herein.

112. That plaintiff, Arrington, as hereinbefore stated was, without provocation was grabbed, thrown against a wall, struck in the arm, handcuffed, arrested, searched, strip searched, and fingerprinted. Plaintiff was touched in an offensive manner by the defendants, while in the performance of their duties as police officers.

113. That all said contact was committed without plaintiff's permission or consent.

114. That all said contact was unlawful and without privilege.

115. That all contact committed by defendants through their agents, servants, and/or employees, including the above named defendants, was offensive to the plaintiff, Arrington, and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

116. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

117. That by reason of the aforesaid, the plaintiff, Arrington, has been damaged in a

sum exceeding the jurisdictional limits of lower courts.

**AS AND FOR AN TENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF MALCOLM ARRINGTON
FOR NEGLIGENCE, AGAINST THE CITY OF NEW YORK**

118. Plaintiff, Malcolm Arrington, repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "117" with the same force and effect as if more fully and at length set forth herein.

119. That the defendant, "City" was careless and reckless in testing, analyzing, investigating, hiring, retaining, training, assigning, supervising, monitoring and promoting as and for its employees the defendant officers, in that the defendant officers lacked the temperament, experience, deportment and ability to be employed by City in the capacity they were serving under on April 27, 2013.

120. That the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices including but not limited to the named "officers"; in that the defendant "City" failed to investigate the above named employee's background in that the City failed to properly supervise and monitor said officers, and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless in retaining, supervising, and/or promoting said officers in their employment

121. That the City and/or the police department were negligent in that they permitted or condoned the false arrests, excessive use of force, the destruction of exculpatory evidence and the intimidation of witnesses to police misconduct of the citizens of New York County, including the plaintiffs.

122. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the City, by its agents, servants and/or employees including the above named defendant officers without any negligence on the part of the plaintiff contributing thereto.

123. That by reason of the aforesaid, the plaintiff was injured in mind and body, suffered physical and/or mental pain, and he was thereby damaged

124. That by reason of the aforesaid Arrington has been damaged in a sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS OF MALCOLM ARRINGTON UNDER
42 U.S.C. 1983 AGAINST MALDONALDO, ZAPATA, JOHN DOES #1-5 and THE CITY
OF NEW YORK**

125. That plaintiff Malcolm Arrington, repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "124" with the same force and effect as if more fully and at length set forth herein.

126. That on or about the 27th day of April, 2013, at or about approximately 7:00 p.m. the defendant "officers" were present at location #1 and location #2 as part of their regular and official employment as police officers for the defendant, "City".

127. That as plaintiff Arrington was lawfully and properly present thereat when he was struck in the arm absent just cause, provocation or reason and unlawfully arrested and deprived of liberty by the defendant "officers" acting within the scope of their employment.

128. The officers seized and destroyed Arrington's camera and intimidated and falsely arrested him for videotaping their actions.

129. The officers filed false charges, submitted false police reports to cover-up their misconduct and maliciously prosecuted Arrington.

130. That all acts committed by "the officers", and other agents, servants, and/or employees of the defendant "City" were committed within the scope of their employment and under color of law.

131. That at all time, the defendant officers were acting pursuant to orders and directives from defendant, The City of New York.

132. That during all times hereinafter mentioned, the defendants acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that "the officers" were acting under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of plaintiff James, and deprived him of the rights, privileges and

immunities secured to him by the First, Fourth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

133. That the unlawful and illegal conduct of the defendant "officers" deprived plaintiff Arrington of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

c) the right to be free of cruel and inhuman punishment

d) the right to freedom of movement

e) the right to equal protection of the law

f) the right to due process of the law

g) the right to a fair trial

134. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of plaintiff's person, false arrest and false imprisonment, malicious prosecution of plaintiff, assault and battery, excessive use of force and threatening the plaintiff, and the failure of the Officers to intervene/intercede and prevent the aforementioned harm despite known of the existence of said violation and having the ability to prevent or mitigate the harm, the defendant officers individually and collectively violated Arrington's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendant officers violated 42 U.S.C. §1983.

135. That by reason of the aforesaid, the plaintiff, Arrington, was injured in mind and body, and he was damaged.

136. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory damages, punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988,

and such other relief as to the court may seem just and proper.

**AS AND FOR A TWELFTH CAUSE OF ACTION BY MALCOLM ARRINGTON
ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985 AND 1986 BY “MALDONALDO”, “ZAPATA” AND
JOHN DOES #1-5 IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK**

137. That plaintiff Malcolm Arrington repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "136" with the same force and effect as if more fully and at length set forth herein.

138. That at all times hereinafter mentioned, the defendants Maldonado, Zapata and John Does #1-5, i.e., “the officers” were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

139. That on April 27, 2013 and thereafter, the defendant officers acted in a conspiracy to cover-up their illegal stop and seizure of the plaintiff Arrington, the use of excessive force against Arrington and James; and the arrest, prosecution and resulting injuries to plaintiff Arrington by filing false police report; filing false charges; swearing out false complaints; intimidating witnesses; arresting witnesses; seizing and suppressing evidence; and denying access to the courts by subverting evidence and due process of law.

140. That by reason of the aforesaid conspiracy to the use of force, use of arbitrary, and use of excessive force, seizure of plaintiff’s person, false arrest and false imprisonment, assault and battery, seizure and destruction of evidence; threatening the plaintiff, and the malicious prosecution of Arrington, the defendant “officers” violated Arringtons’ rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, The defendant officers, and the City under the doctrine of respondent superior, violated 42 U.S.C. §1985 and 1986.

141. That by reason of the aforesaid, the plaintiff, Arrington, was injured in mind and body, and he was damaged.

142.. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory damages, punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1985, 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A THIRTEENTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF, MALCOM ARRINGTON,
FOR MALICIOUS PROSECUTION AGAINST ALL NAMED DEFENDANTS**

143. The Plaintiff, "Arrington" repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "142" with the same force and effect as if more fully and at length set forth herein.

144. That the defendant "City", by and through its, agents, servants, and/or employees, including one or more of the named "officers" falsely arrested, filled out false police reports, gave false testimony/statements and processed the plaintiff for arrest and criminal prosecution.

145. That the defendants, their agents, servants and/or employees knew that the "Arrington" was innocent of all charges, yet acting with intentional disregard for the truth, they filed false police reports, provided false sworn statements and they maliciously prosecuted him.

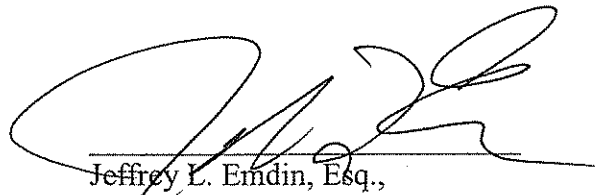
146. That as a result of the malicious prosecution the plaintiff was caused to attend numerous court proceedings until all criminal charges were dismissed against him on February 6, 2014.

147. That the plaintiff was and is innocent of all criminal charges filed against him.

148. That by reason of the aforesaid, the plaintiff, suffered additional pain and/or physical and/or emotional trauma and has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, THE PLAINTIFFS SEEK JUDGMENT on the First through the Thirteenth causes of action for compensatory damages, punitive damages, legal fees, expert fees, costs, disbursements, and such other and further relief as to the court seems just and proper.

DATED: New York, New York
April 24, 2014

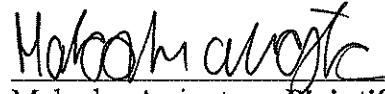
A large, stylized handwritten signature in black ink, appearing to read 'JEFFREY L. EMDIN', is written over a horizontal line.

Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the Plaintiffs
499 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

CLIENT VERIFICATION

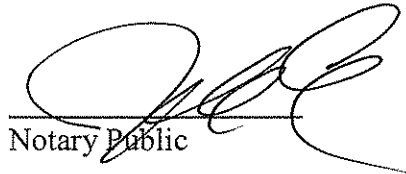
STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Malcolm Arrington, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Verified Summons and Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.



Malcolm Arrington., **Plaintiff**

Sworn to before me this
23 day of April, 2014



Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2017

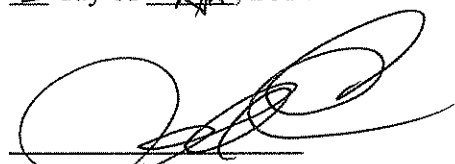
CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Reginald James, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Verified Summons and Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.

Reginald James
Reginald James., **Plaintiff**

Sworn to before me this
23 day of April, 2014



Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2015

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

REGINALD JAMES and MALCOLM ARRINGTON

Plaintiff(s),

-against-

THE CITY OF NEW YORK, P.O. DAVID MALDONALDO, SHIELD # 806, INDIVIDUALLY AND
AS A POLICE OFFICER, LT. PAUL ZAPATA, 32ND PCT, INDIVIDUALLY AND AS A POLICE
OFFICER, AND P.O. JOHN DOE 1-5, INDIVIDUALLY AND AS A POLICE OFFICERS, 32ND PCT

Defendant(s).

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, L.L.P.
Attorneys for Plaintiff(s)
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

TO: Corporation Counsel
Attorney for Defendants
100 Church Street
New York, New York 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of
New York State, certifies that, upon information and belief and reasonable inquiry, the contentions
contained in the annexed document are not frivolous.

Dated: April 24, 2014

Signature


Jeffrey L. Emdin, Esq.

=====

PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on.

☐ NOTICE OF SETTLEMENT that an order
presented for settlement to the HON.

of which the within is a true copy will be
one of the judges of the within named Court, at

on 20__